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No.1905/6 - MONDAY MARCH 09, 2015

(Published by Authority)

PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

NORTH WESTERN PROVINCE PROVINCIAL COUNCIL

Statute No. 01 of 1994 Wayamba Human Resource Development Authority of
North Western Province

MINISTER'S ORDERS UNDER THE SECTION 18 – 2(C) OF STATUTE NO 01 OF 1994 OF HUMAN RESOURCE
DEVELOPMENT AUTHORITY

Attorney - at Law, J. P. DAYASIRI PADMAKUMARA JAYASEKARA,
North Western Provincial Council Chief Minister and Minister of
Finance and Planning, Law & Peace, Local Government and
Provincial Administration, Human Resources,
Education & Cultural Affairs, Land, Environment, Tourism,
and Investment Co-ordinate, Co-operative Development
and Food Supply & Distribution

Office of the Chief Minister,
Kurunegala,
27th February, 2015.

ORDERS

01. The name of these orders in No. 01 of 2014 of orders of Wayamba Human Resource Development & Management of North Western Province.

1ST PART

TUITION CLASSES HELD IN “SUNDAYS” & “FULL MOON POYA DAYS”

02. No one can conduct Tuition Classes from 6.00 am to 1.30 pm in Sundays for the school students from grade 1 to 11 (up to G.C.E. Ordinary Level) and no one can allow to do any type of tuition on “Full Moon Poya Days” within North Western Province.



2ND PART

MONITORING OF INSTITUTIONS

03. Chairman or any person who has given authority by the Chairman of the Wayamba Human Resources Development Authority can examine any Institution or collect information about it.
04. Chairman or any person who has given authority by the Chairman of the Human Resource Development Authority with supportive staff has powers to enter any institution within office hours or collect information about it.
05. The responsibility of the owner's /manager's party is to provide necessary information and other support.
06. Chairman can transfer the powers related to orders of Human Resource Development & Management of North Western Province to the General Manager.

3RD PART

CANCELLING THE LICENSES

07. When the opinion of Chairman is violated the conditions by of this notification's 2nd sentence by an Institute, the notice to give reasons within 3 weeks by registered post for not to order cancellation of the License under the section 18 – 2 (C) of the statute of Human Resources Development Authority of North Western Province.
08. If reply not received within 3 weeks or the reply cannot be satisfied, the chairman has powers to order to cancel the license under section 07.

4TH PART

APPEALS

09. Any unsatisfied person can appeal to the Minister about cancellation of License or rejection of renewal.
10. The minister has to appoint consultation committee with no more than 3 members to investigate such appeal and decisions have to be made by Committee recommendations.
11. Any applicant by himself or by a representative should have representation about the matter in his Appeal.
12. Minister's decision of the Appeal is final and decisive.

5TH PART

ADVISORY COMMITTEE

13. Advisory Committee which is appointed by the order of the minister under the section 18 – 2 (C) of the Statute No. 1 of 1994 of North Western Province, appeared in the notices section IV (A) Provincial Councils of extra ordinary Gazette notification numbered 1780/4 dated Monday 15th October 2012 of Democratic Socialist Republic of Sri Lanka.

6TH PART

ADMINISTRATION

14. Special Administrative Unit which is appointed by the order of the minister by the Authority to Register Institutes, Administration & Consultative Services under the section 18 – 2 (C) of the Statute No. 1 of 1994 of North Western Province, appeared in the notices section IV (A) Provincial Councils of extra ordinary Gazette notification numbered 1780/4 dated Monday 15th October 2012 of Democratic Socialist Republic of Sri Lanka.

7TH PART

OFFENCES AND PUNISHMENTS

15. Breach of conditions under the section 02 orders of this notice.

16. Any Institute which has a license conduct against the chairman's advices under the orders of Human Resources Development & Management.

17. Any Institute which has a license, not corporate to the authorized representative of the chairman and not giving information.

18. Any offensive conduct or not doing any event in this statement can be charged in Magistrate Courts. Shall on conviction be liable to a fine not exceeding Rupees Fifty Thousand or to an imprisonment of either description for a term not exceeding one year or to both such fine and imprisonment.

19. For the events of these orders

"Minister" means the Minister of Human Resources Development of the North Western Province.

"Authority" means Human Resources Development Authority of the North Western Province.

"Director Board" means Director Board of the Human Resources Development Authority of North Western Province.

"Chairman" means the Chairman of the Human Resources Development Authority of North Western Province.

"Executive Director" means Executive Director of the Human Resources Development Authority of North Western Province.

"Managing Director" means Managing Director of the Human Resources Development Authority of North Western Province.

"Institute" means Institute which is operating in the Human Resources Development Sector with more than 10 students of North Western Province.

"Statute" means Statute No. 01 of 1994 Human Resources Development Authority of the North Western Province.

"Advisory" means Advisory services and related other services to promote Institutes which are engaged in the Development of Human Resources and Management of North Western Province.

"Advisory Committee" means Advisory committee which is appointed by the order of the minister under the part 5, section 18 – 2 (C) of the Statute No. 1 of 1994 of North Western Province, appeared in the notices section IV (A) Provincial Councils of extra ordinary Gazette notification numbered 1780/4 dated Monday 15th October 2012 of Democratic Socialist Republic of Sri Lanka.

"License" means License which is issued by the order of the minister under the section 18 – 2 (C) of the Statute No. 1 of 1994 of North Western Province, appeared in the notices section IV (A) Provincial Councils of extra ordinary Gazette notification numbered 1780/4 dated Monday 15th October 2012 of Democratic Socialist Republic of Sri Lanka.

In the event of any inconsistency between the Sinhala, Tamil and English texts of this gazette, the Sinhala text shall prevail.

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